

Mayans Ask Mexican Court to Recognize Lakes as Legal Persons

In the Mexican state of Yucatan, hundreds of underground lakes form a semicircular shape in the northwestern part of Yucatan state. They are called the Ring of Cenotes. The lakes provide water for the area, but they are also part of a dispute between local people and pig farmers.

The cenotes are also important to local people who earn a living by leading foreign visitors into the caverns to swim and explore.

Maribel Ek lives in the community of Homun, near the cenote known as Santa Maria. To native Mayans like Ek, cenotes are holy. She calls the Sant Maria cenote her "neighbor."

That belief is behind a legal action, or lawsuit, that aims to have the Ring of Cenotes legally recognized as a person. Personhood would give the lakes the same rights and protections of law that human citizens have.

A Mayan organization called Guardians of the Cenotes has brought the lawsuit. It aims to keep large pig farms out of the area because they are affecting the water quality of the underground lakes.

If the group wins, the lakes will become the first ecosystem in Mexico to be considered a person. There have been other such cases worldwide, such as the Whanganui River in New Zealand or the Komi Memem River in the Brazilian Amazon.

Ek is a member of the Guardians group.

Polluting the waters

The threats to cenotes have been growing. Cities in Yucatan are growing and there are new breweries and soybean fields in the area. But what most worries the Guardians of the Cenotes are the pig farms.

Mexico's Ministry of the Environment reports that 507 pig farms are operating near the Ring of Cenotes. There is little to no control over what happens to the thousands of liters of water containing pig waste from the farms.

Yameli Aguilar is a biologist from the Autonomous University of Yucatan. He said the polluted water goes into the aquifer.

A study carried out last year by the Ministry of the Environment found E. coli bacteria in 20 cenotes near pig farms.

The state has named the land a natural protected area, and it is an important wetland. Lourdes Medina is a lawyer who represents the Guardians in the legal case. She said the government still has failed to prevent “serious contamination” from taking place.

Ek and others created the Guardians of the Cenotes group to lead the fight against one pig farm built near Homun in 2017. They organized protests and legal actions without any effect. A year later, six children from Homun brought a case demanding their right to water and a healthy environment. A judge ordered the farm closed.

In 2022, the group began its personhood legal action. If successful, it would affect 52 communities within the Ring of Cenotes. A Yucatan state judge has ordered officials not to give permission to any project that could affect the area until the lawsuit is settled.

That could happen at the beginning of next year.

What do the pig farmers say?

Pig farms and other large industries come to the area because of the availability of water. The farms use a lot of water to cool the animals and clean their waste.

The industry says it is not causing the contamination. Carlos Ramayo Navarrete is director of the Pig Farmers Association in Merida. It represents the largest pig farms in Yucatan. He said the problem comes from a lack of drainage systems in cities and small pig farmers. Navarrete said small pig farms are not as officially regulated as the big farms he represents.

He said around half the water the farms use is reused. In addition, he said all of the farms have treatment systems to reduce pollution in their wastewater. The remaining water is then used as fertilizer.

However, both the Ministry of the Environment and Aguilar, the biologist, have said that the measures taken by the industry are still not enough.

What will the future bring?

Back in Homun, Maribel Ek enjoys swimming in the waters of the cenote. She said that she has learned the cenote is "a blessing, a dark hole that becomes a friend," and she added "That's why we demand rights for our cenotes."

I'm Jill Robbins.

Teresa de Miguel reported this story for the Associated Press. Jill Robbins adapted it for Learning English.

Vocabulary

cavern - n. ถ้ำขนาดใหญ่

ecosystem - n. ระบบนิเวศ, ทุกสิ่งที่มีดำรงอยู่ในสิ่งแวดล้อมเฉพาะแห่ง

brewery - n. โรงเบียร์, บริษัทผลิตเบียร์

aquifer - n. ชั้นหินหรือทรายที่อุ้มน้ำไว้, แหล่งน้ำใต้ดิน

contamination - n. การปนเปื้อน, เมื่อสารใดๆ เช่น มลพิษ เข้าไปอยู่ในที่ที่ไม่ควรอยู่

drainage - n. ระบบระบายน้ำ, ระบบที่ระบายน้ำฝนหรือน้ำเสียออกจากถนนและอาคาร

regulate - v. ควบคุม, ออกกฎหรือข้อบังคับเพื่อควบคุมกิจกรรมต่างๆ เช่น ธุรกิจหรือการเดินทาง

Reading Comprehension Quiz

1. What is the primary characteristic of the Ring of Cenotes mentioned in Paragraph 2?

- A. Its historical significance as an ancient Mayan city.
- B. Its unique semicircular shape and water supply function.
- C. Its role as a major pig farming industrial zone.
- D. Its status as a legally protected wildlife sanctuary.

2. How do the cenotes primarily support the livelihood of local people, according to Paragraph 3?

- A. By providing fertile land for agriculture.
- B. By serving as a source of freshwater for drinking.
- C. By attracting foreign visitors for swimming and exploration.
- D. By offering opportunities for fishing and aquaculture.

3. What is the significance of the Santa Maria cenote to native Mayans like Maribel Ek, as described in Paragraph 4?

- A. It is a popular spot for commercial fishing.
- B. It is considered a dangerous place due to unknown depths.
- C. It holds a sacred or holy status.
- D. It is a convenient source of water for irrigation.

4. What is the main goal of the legal action or lawsuit discussed in Paragraph 5 regarding the Ring of Cenotes?

- A. To establish the cenotes as a national park.
- B. To grant the lakes legal personhood with rights and protections.
- C. To declare the area a UNESCO World Heritage site.
- D. To secure funding for the ecological restoration of the lakes.

5. Which organization brought the lawsuit, and what is its primary concern mentioned in Paragraph 6?

- A. The Mexican Ministry of the Environment, concerned about overfishing.
- B. The Pig Farmers Association, seeking better regulation.
- C. Guardians of the Cenotes, worried about water quality from pig farms.
- D. The Autonomous University of Yucatan, conducting a scientific study.

6. If the lawsuit is successful, what unique precedent would it set for Mexico, according to Paragraph 7?

- A. It would become the first country to ban all pig farming.
- B. It would be the first ecosystem in Mexico to be recognized as a person.
- C. It would establish a new international legal framework for environmental protection.
- D. It would be the first time a Mayan organization won a major lawsuit.

7. According to Paragraph 10, what is the *most* significant concern for the Guardians of the Cenotes regarding threats to the cenotes?

- A. The expansion of cities in Yucatan.
- B. The establishment of new breweries.
- C. The development of soybean fields.
- D. The operations of pig farms.

8. What problem is highlighted in Paragraph 11 regarding the numerous pig farms near the Ring of Cenotes?

- A. A shortage of water for the farms.
- B. The high cost of pig feed.
- C. A lack of control over pig waste disposal.
- D. The declining demand for pork products.

9. What does biologist Yameli Aguilar state is the fate of the polluted water from pig farms, according to Paragraph 12?

- A. It is completely treated and reused.
- B. It evaporates before causing harm.
- C. It goes directly into the aquifer.
- D. It is collected and transported out of the area.

10. What specific finding from a study by the Ministry of the Environment is mentioned in Paragraph 13 as evidence of contamination?

- A. High levels of heavy metals in the water.

- B. The presence of E. coli bacteria in cenotes.
- C. A significant drop in the water level of the cenotes.
- D. The extinction of certain fish species in the lakes.

11. Despite the land being designated a natural protected area and important wetland, what accusation does lawyer Lourdes Medina make against the government in Paragraph 14?

- A. It has failed to promote tourism effectively.
- B. It has not provided enough financial support to local communities.
- C. It has failed to prevent serious contamination.
- D. It has not properly regulated fishing activities.

12. What eventually led to the closure of a pig farm near Homun, as described in Paragraph 15?

- A. Protests organized by the Guardians of the Cenotes.
- B. Direct legal actions initiated by the Guardians.
- C. A case brought by six children demanding their right to water.
- D. An order from the Ministry of the Environment.

13. What immediate effect has the 2022 personhood legal action had, as stated in Paragraph 16?

- A. All existing pig farms have been permanently closed.
- B. A judge has ordered officials to halt new projects that could affect the area.
- C. The lawsuit has already been settled in favor of the cenotes.
- D. Fifty-two communities have joined the Guardians group.

14. According to Carlos Ramayo Navarrete, director of the Pig Farmers Association, what is primarily responsible for the contamination problem, as stated in Paragraph 20?

- A. The large-scale operations of his association's farms.
- B. A lack of proper drainage systems in cities and unregulated small pig farms.
- C. The illegal dumping of waste by local residents.
- D. Natural geological processes in the cenotes.

15. Despite the industry's claims in Paragraph 21, what do the Ministry of the Environment and biologist Aguilar conclude about the measures taken by pig farms, according to Paragraph 22?

- A. They are highly effective in preventing pollution.
- B. They are sufficient but need better enforcement.

C. They are still not adequate to address the problem.

D. They are innovative and should be adopted by other industries.